

		Moving attorney is ORDERED to give notice to client, and file proof of service of the court's order as entered. Withdrawal will be effective upon filing of proof of service of the order. MOTION NO. 3: The motion of attorney Stephen A. Madoni from Law Office of Stephen A. Madoni, PLC to be relieved as counsel of record for plaintiff J.A., a minor by and through her Guardian ad Litem, Susana Hurtado, is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
6	Popal v. Hernandez 2026-01538878 Motion to set aside/vacate default CMC	Defendant Jesus Hernandez's Motion for Relief from Entry of Default is DENIED. Plaintiff's objections to paragraph 4 of Lee's Declaration is SUSTAINED. "Although a trial court has discretion to vacate the entry of a default or subsequent judgment, this discretion may be exercised only after the party seeking relief has shown that there is a proper ground for relief, and that the party has raised that ground in a procedurally proper manner, within any applicable time limits." (<i>Cruz v. Fagor America, Inc.</i> (2007) 146 Cal.App.4th 488, 495.) "While section 473 authorizes a court to relieve a party from default suffered through inadvertence, surprise, excusable neglect or mistake, these words are not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category. A party who seeks relief under section 473 must make a showing that due to some mistake, either of fact or of law, of himself or of his counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or order from which he seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he is entitled to it, and the assumption of this burden necessarily requires the production of evidence. In a motion under section 473 the initial burden is on the moving party to prove excusable neglect by a preponderance of the evidence." (<i>Kendall v. Barker</i> (1988) 197 Cal.App.3d 619, 623-624.)

		Defendant's counsel submits a declaration which states: "On information and belief, prior Defense Counsel was unable to make contact with Defendant within 40 days of subservice of the summons and complaint." (Lee Decl., ¶ 4.) Lee also states he joined the office on April 20, 2026, after the events in paragraph 4 occurred. (Lee Decl., ¶ 6.) Thus, Lee's statement in paragraph 4 is either impermissible hearsay from an unknown declarant who informed him of the occurrences or Lee lacks personal knowledge. (Evid. Code §§ 702, 1200.) Either way, paragraph 4 is inadmissible and cannot be used as evidence for the purposes of this motion. Defendant provides no other evidence of a mistake, inadvertence, or neglect. Thus, Defendant has failed his burden of submitting admissible evidence to establish a proper ground for relief from default and the Court must deny the motion.
7	Supplement Advisory Inc. v. G & B Collision Center 2025-01519717	The petition of petitioner Supplement Advisory, Inc., dba The Mewes, for an order confirming the arbitration award against respondent G &B Collision Center on July 15, 2025 and entering judgment on its terms is GRANTED. Discussion. Any party to an arbitration in which an award has been made may petition the court to confirm, correct, or vacate the award. Code Civ. Proc. § 1285. The petition shall name as respondents all parties to the arbitration and may name as respondents any other persons bound by the arbitration award. Code Civ. Proc. § 1285. A petition to confirm, correct, or vacate an arbitration award must, among other things, set forth or attach a copy of the award and the written opinion of the arbitrators, if any. Code Civ. Proc. § 1285.4(c). If a petition to confirm, correct, or vacate an arbitration award or response is duly served and filed, the court must confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding. Code Civ. Proc. § 1286. Petitioner Supplement Advisory, Inc., dba The Mewes, has complied with the requirements to have the Court confirm the award and enter judgment on its terms.